

City Contract # _____

MPO Contract # 187428

PROFESSIONAL SERVICES AGREEMENT
for
Evers Boulevard Road Rehabilitation 35% Design Plan

THIS AGREEMENT made and entered into this _____ day of July, 2014 by and between the Cheyenne Metropolitan Planning Organization, hereinafter referred to as the "MPO" and Ayres Associates, hereinafter referred to as "Consultant." The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO's Fiscal Manager in accordance with Contract #6111.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work attached hereto as Exhibits "A1" and "A2", incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this scope of work will be completed in accordance with the project schedule attached as Exhibit "B". Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. CONSULTANT RESPONSIBILITY

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*

4. GIS MAPS AND DIGITAL DATA

If the consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user. The CLCCGIS cannot vouch for any unauthorized use.

6. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the consultant while performing the duties and responsibilities of the contract. It is the responsibility of the consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-Consultants of the requirements and ensure their compliance. If the consultant, their employees or sub-consultants are found in violation of this policy, the contract may be terminated.

8. INDEMNIFICATION / HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the contract.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an

“occurrence” policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this contract.

It is understood and agreed that these policies are primary and not contributory. All policies required under this contract shall be in effect for the duration of the contract. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this contract, and failure to do so shall be construed to be a breach of this contract.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

10. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 CFR Part 26

All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of age, race, color, disability, national origin or sex.

11. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant according to the fee schedule given in the Exhibits "C1" and "C2", a total of \$103,044.00. Exhibits "C1" and "C2" which are attached to this Agreement, are incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the MPO, in completing the work as described in Exhibits "A1", "A2", "B", "C1", and "C2. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation. The MPO will waive any and all claims against Consultant based on reuse of these documents or materials for any other project not the subject of this Agreement or any unauthorized changes by the MPO or any third party under the MPO's direction. A portion of the payment may be held until any claims are resolved.

12. MPO REPRESENTATIVE

Prior to commencement of work, the MPO will designate in writing, a MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Services, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT

The Consultant shall function as an independent Consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of

its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount;
- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the MPO's convenience.

Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorneys' fees.

21. GOVERNING LAW, JURISDICTION and VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY

The State of Wyoming, and WYDOT, the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written

terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. §1-39-101 *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserves all immunities and defenses available under the Wyoming Governmental Claims Act, W.S. Stat. §1-39-101 *et. seq.*

23. ASSUMPTION OF RISK

The Consultant shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. Cheyenne MPO shall notify the Consultant of any state or federal determination of noncompliance.

24. ENVIRONMENTAL POLICY ACTS

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

25. HUMAN TRAFFICKING

As required by 22 U.S.C. 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect; or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

26. KICKBACKS

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

27. LIMITATIONS ON LOBBYING ACTIVITIES

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its subconsultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

28. MONITORING ACTIVITIES

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its subconsultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

29. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyoming Statute § 27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, et seq., and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

30. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.

31. PUBLICITY

Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify Cheyenne MPO, the Wyoming Department of Transportation (WYDOT) and/or Federal Highway Administration as the sponsoring agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

32. SUSPENSION AND DEBARMENT

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

33. NO GOVERNMENT OBLIGATION TO THIRD PARTIES:

No Obligation by the Federal Government.

- a. The Purchaser and Consultant acknowledge and agree that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this contract and shall not be subject to any

obligations or liabilities to the Purchaser, Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.

- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by Federal Transit Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub consultant who will be subject to its provisions.

34. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. §§ 3801 *et seq.* and U.S. DOT regulations, “Program Fraud Civil Remedies,” 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. §5307, the Government reserves the right to impose the penalties of 18 U.S.C. §1001 and 49 U.S.C. §5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each subcontract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub Consultant who will be subject to the provisions.

35. FEDERAL CHANGES: 49 CFR Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures and directives, including without limitation those listed directly or by reference in the Agreement (Form FTA MA (18) dated October, 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this contract. Consultant’s failure to so comply shall constitute a material breach of this contract.

36. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS: FTA Circular 4220.1F

Applicability: *The incorporation of FTA terms applies to all contracts.*

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by

reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

37. LOBBYING: 31 U.S.C. 1352 – 49 CFR Part 19 - 49 CFR Part 20
Byrd Anti-Lobbying Amendment, 31 U.S.C. 1352, as amended by the Lobbying Disclosure Act of 1995, P.L. 104-65 [to be codified at 2 U.S.C. § 1601, et seq.] Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 CFR Part 20, “New Restrictions on Lobbying”. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay an person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. 1352. Such disclosures are forwarded from tier to tier up to the recipient.
38. ADA ACCESSIBILITY: 42 U.S.C. 1201 *et seq.*
Applicability: *Facilities construction or renovation contracts.*
Facilities to be used in public transportation service must comply with 42 U.S.C. Sections 12101 *et seq.* and DOT regulations, “Transportation Services for Individuals with Disabilities (ADA),” 49 CFR Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 CFR Part 1192 and 49 CFR Part 38. Notably, DOT incorporated reference the ATBCB’s “Americans with Disabilities Act Accessibility Guidelines” (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 CFR Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 CFR Part 37.
39. PRIVACY ACT: 5 U.S.C. 552
Applicability: *The Federal Privacy Act requirements flow down to each third party Consultant and their contracts at every tier.*
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:
1. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure to comply with the terms of the privacy Act may result in termination of the underlying contract.

2. The Consultant also agrees to include these requirements in each subcontract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

40. ENTIRETY OF AGREEMENT

This agreement consisting of 10 pages, and Exhibits "A1" "A2", "B", "C1", "C2" consisting of 3 (A1), 3 (A2), 1 (B), 1 (C1), and 1 (C2) pages respectively, and submitted proposal with negotiated changes, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

Attest:

Richard L. Kaysen,
Mayor of Cheyenne on behalf of the MPO

Carol Intlekofer, City Clerk

By: _____

Date: _____

James Shall,
Ayres Associates
214 W. Lincolnway, Suite 22
Cheyenne, WY 82001

By: _____

Date: _____

EXHIBIT A1

EVERS BLVD. ROADWAY ANALYSIS

PROJECT OBJECTIVE: The goal of this project is to provide a conceptual design for Evers Boulevard. The street is in generally poor condition and is in need of extensive rehabilitation. This project provides an opportunity to enhance the multi-modal operations of the corridor as well as provide a gateway to the well-established Western Hills neighborhood.

TASK 1 – PROJECT KICK-OFF AND RECONNAISSANCE

- 1.1 **Scoping/Kick-Off Meeting.** Ayres and the City of Cheyenne will hold a scoping/kick-off meeting to insure that the scope proposed by Ayres meets the goals of City staff. Ayres will prepare meeting minutes to document the discussion and distribute for comment and feedback.
- 1.2 **Observation of On-Site Conditions/Notes/Photos/Review Existing Documents.** Ayres will review all available existing documents for Evers Boulevard as well as conduct a site visit to observe the existing conditions and take photos of the corridor.
- 1.3 **Collection of Utility Information.** Ayres survey crews will obtain existing utility information from Brittany Drive to Bishop Boulevard including water valve locations, sanitary sewer manhole rim elevations, and sanitary sewer pipe inverts.
- 1.4 **Project Administration.** This task includes the processing of all billings and completion of tasks necessary for administration of the project.

TASK 2 – ANALYSIS

- 2.1 **Speed Data Collection Intersection Count Set-Up/Take Down.** Speed information will be collected using automatic traffic recorders placed at three locations between Bishop Boulevard and Oakhurst Drive. These counters will collect 48 hours of data and be summarized to identify measures such as peak hours of traffic, ADT, and 85th percentile speeds.
- 2.2 **Traffic Turning Movement Counts and Data Download.** Turning movement counts will be collected at Bishop Boulevard, Vandehei Avenue, and Oakhurst Drive. Counts will be taken on a Tuesday, Wednesday, or Thursday from 7 – 9 a.m. and from 2:30 – 6 p.m. when school is in session. The data will be summarized in 15-minute increments to identify peak hours of traffic and peak hour factors.
- 2.3 **Analyze Crash Data.** Ayres will request crash data from the MPO for Evers Boulevard for the past three years. These records will then be reviewed and summarized by location, date and time, collision type, and severity.
- 2.4 **Traffic Analysis and Recommendations.** Once the traffic data has been summarized Ayres will provide the MPO with the data. The MPO will then develop future year forecasts of traffic volumes along the roadway as well as at the three intersections where

turning movement counts were taken. Ayres will then analyze the future traffic volumes using Synchro in Highway Capacity Mode. The proposed cross-sections for Evers Boulevard will be evaluated and summarized in a report.

TASK 3 – CORRIDOR ANALYSIS AND DESIGN

- 3.1 **Develop Plan and Profiles.** Proposed vertical and horizontal geometry of the roadway will be designed based on criteria in the Unified Development Code and A Policy on Geometric Design of Highways and Streets. Plan and profile sheets will be created for the entire corridor to a 35% design level. The corridor runs from Brittany Drive to Bishop Boulevard.

TASK 4 – PUBLIC INVOLVEMENT/COMMITTEE MEETINGS

- 4.1 **Project Steering Committee Meetings.** Ayres will hold meetings as necessary with the Steering Committee, City Engineering, and the MPO to provide updates on findings and progress of the project. Included are: four (4) Project Steering Committee Meetings.
- 4.2 **Public Meeting #1.** Ayres will hold a corridor walk. This public activity will allow for the gathering of information and discussion of the project with neighborhood residents. Ayres will provide a meeting flier to MPO for their distribution.
- 4.3 **TAC Advisory Meeting.** Ayres will hold one (1) meeting with the Technical Advisory Committee to discuss the scope and progress of the project
- 4.4 **Public Meeting Follow Up Meeting with MPO.** Follow up meetings will be held with the MPO after each of the two public meetings, for a total of two (2) follow up meetings. This time will be spent discussing the information that was obtained at the public meetings.
- 4.5 **Public Meeting #2.** Ayres will hold a second public meeting for all citizens to present the progress of the project and ensure the concerns of the public have been addressed. Ayres will provide a meeting flier to MPO for their distribution.
- 4.6 **Provide MindMixer Uploads.** Ayres will work with the MPO and provide all supporting materials such as graphics, photos, and questions to be posted by the MPO on a MindMixer site created for the Evers Boulevard project.

TASK 5 – REPORT

- 5.1 **Draft Report Preparation.** This task includes preparation of the draft report incorporating all traffic data, roadway design, and plan and profiles.
- 5.2 **Graphics for Report and Meetings.** Ayres will develop all graphics to be used in the report and presented at public meeting.
- 5.3 **Draft Cost Estimate.** Ayres will develop a construction cost estimate for the project based on the recommendations presented in the draft report.

- 5.4 **Draft Report Review Meeting.** Ayres will hold follow a meeting with the MPO to discuss the draft report and any changes that need to be made.
- 5.5 **Final Report Preparation.** Ayres will incorporate any changes suggested by the MPO in the draft report review meeting into the final report.
- 5.6 **Final Cost Estimate.** Ayres will develop a revised cost estimate for the project based on the recommendations presented in the final report.
- 5.7 **Final Report Review Meeting.** Ayres will hold follow a meeting with the MPO to discuss the final report and any changes that need to be made.
- 5.8 **Final Report.** Ayres will provide a final 35% design report for the Evers Boulevard project based on the information received during the design, analysis, and public involvement processes.

EXHIBIT A2

EVERS BLVD. STORM DRAINAGE ANALYSIS

PROJECT OBJECTIVE: The goal of this analysis is to determine a storm sewer system design that will remove storm water off of Evers Boulevard, west of I-25. The accepted design should increase the life of the pavement while providing some level of storm protection for the surrounding area. The level of protection provided is based on the design alternative chosen for this project. This scope includes an alternative analysis and final design on the selected alternative.

The City's drainage master plan calls for 100-year protection along Evers Boulevard. The storm sewer proposed is a 42-inch RCP at the upstream end that transitions ultimately to double 66-inch RCP culverts under I-25. For a variety of reasons including budgetary constraints, this alternative may not be practical, therefore, alternative design concepts should to be developed.

TASK 1 – MEETINGS and DATA COLLECTION

- 1.1 **Scoping/Kick-Off Meeting.** Ayres and the City of Cheyenne will hold a scoping/kick-off meeting to insure that the scope proposed by Ayres meets the goals of City staff. Ayres will prepare meeting minutes to document the discussion and distribute for comment and feedback.
- 1.2 **Survey Data.** Ayres survey crews will obtain survey on the existing culverts under I-25. These culverts are the downstream constraint to the project. Ayres will use the City 2-ft topographic information for the drainage analysis. Sanitary sewer manhole rim elevations and pipe inverts will be surveyed with this task.
- 1.3 **Progress Meetings.** This task accounts for 2 meetings during the course of the project. 1 meeting during the alternative analysis phase and 1 meeting during the preliminary design phase of the project. Meeting minutes will again be provided by Ayres.
- 1.4 **Data Collection.** Ayres will obtain base information from the City. This includes 2-ft contour data, aerial imagery, and drainage information from the City's Drainage Engineer.
- 1.5 **Utility Collection.** The required utility information will be obtained with the roadway design portion of this project (not included in this scope). Therefore horizontal utility information will not be obtained for this alternative. This scope assumes 5 potholes will be required at critical utility locations. Critical locations will be determined by Ayres and the City.

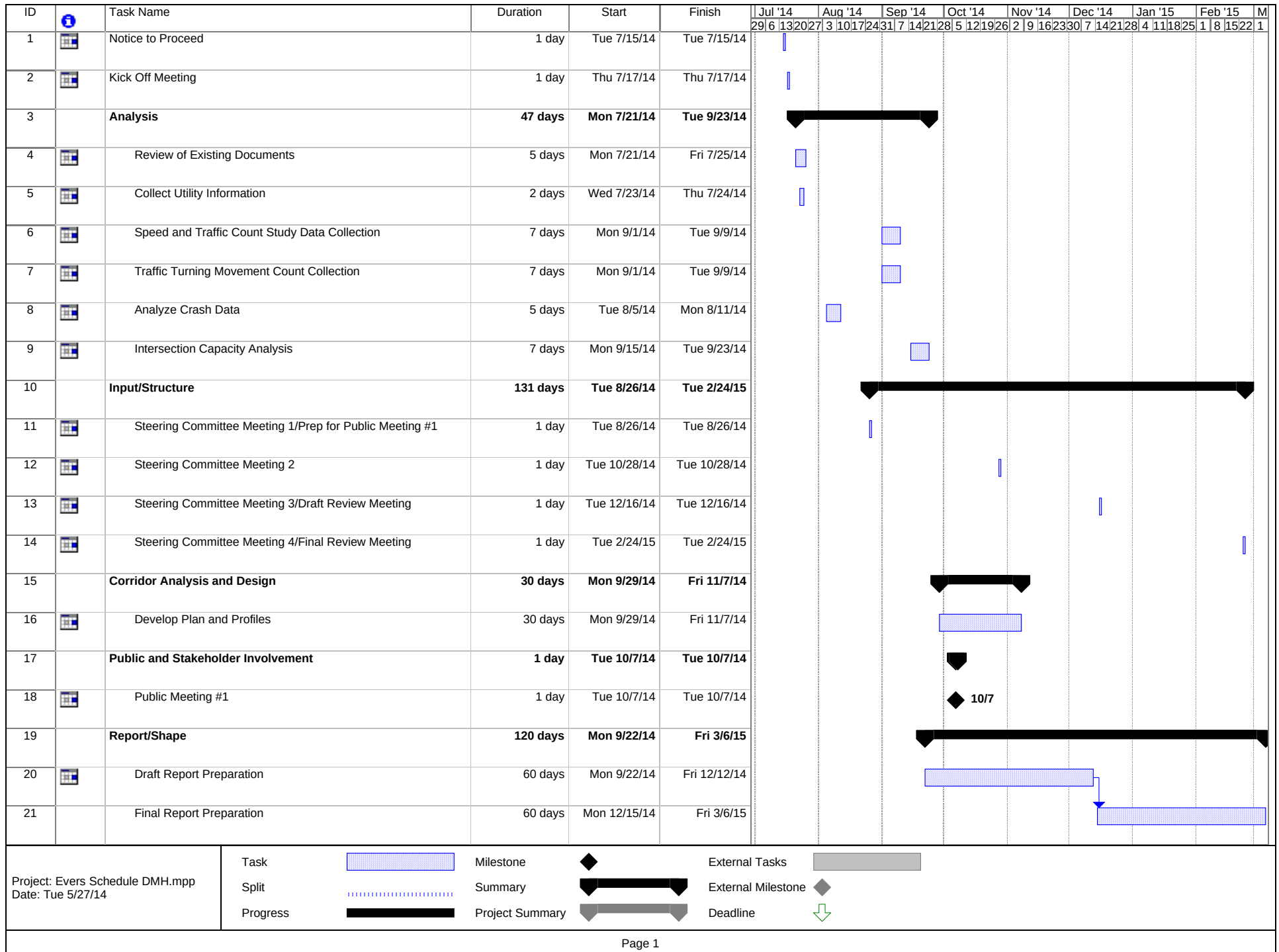
TASK 2 – ALTERNATIVE ANALYSIS

- 2.1 **Basin Delineation.** Ayres will incorporate the City Drainage Engineer's drainage basin delineations along Evers Boulevard in order to model the proposed storm sewer system.
- 2.2 **Preliminary Storm Sewer Alignment.** Ayres will determine a preliminary alignment of the proposed storm sewer system. A profile will be created that will be used in the hydraulic modeling.
- 2.3 **EPA SWMM Model.** Ayres will create an EPA SWMM model of the project area. EPA SWMM will be used for model capabilities at analyzing several storm events. The model will use the delineated basins in task 2.1. The preliminary storm sewer profile created in task 2.2 will be input into the model.
- 2.4 **HEC-RAS Modeling.** The approved effective hydraulic HEC-2 model will be updated with the task. Minimal updates will be performed. The purpose of updating the model will be to determine the impacts that the proposed storm sewer system has to the surrounding development. The HEC-2 model will be brought into HEC-RAS. The effective cross sections will be updated to include the most recent topographic data that we have for the project. The street section will be obtained from survey data from the roadway portion of the project (not included in this scope). The City's 2-ft contour data will be used if data is required beyond the extents of the street survey. To keep the modeling simple, no additional cross sections will be added into the model. In order to accurately model the impacts of the culvert crossing under I-25, the culvert will be updated with the survey information obtained in task 1.2.
- 2.5 **Alternative Analysis.** A conceptual level design will be created for the 2-, 5-, 10-, 25-, 50- and 100- year events. The storm sewer will be modeled in EPA SWMM for each of the events. For the 25-, 50- and 100-year events the HEC-RAS model will be updated to determine the impacts of the proposed system to the floodplain. Floodplains will not be delineated with this task. Instead a reduction in water surface elevation along Evers Boulevard will be determined.
- 2.6 **Cost Estimate.** An engineer's estimate of construction cost will be created for each of the designs in task 2.5.
- 2.7 **Decision Matrix.** A decision matrix will be created for the storm events. The matrix will be created by Ayres with input from City staff. From the design matrix, an alternative and storm sewer event will be chosen to take to final design. This alternative will be approved by the City.

TASK 3 – FINALIZING PRELIMINARY DESIGN FOR INCLUSION INTO MPO PLAN

- 3.1 **Plan and Profile.** A plan and profile of the chosen alternative will be created. This plan and profile will be reviewed by City staff and comments will be provided prior to the submittal of the final planset.

- 3.2 **EPA SWMM Analysis.** The EPA SWMM model created in task 2.3 will be updated to include the proposed alternative. The storm sewer will convey the selected storm sewer event.
- 3.3 **Inlet Sizing.** Inlets along the corridor will be sized to collect the selected storm sewer event. Ayres Associates will coordinate with City staff for appropriate system sizing.
- 3.4 **Cost Estimate.** A detailed cost estimate will be provided for the preliminary design.
- 3.5 **Floodplain Delineation.** The floodplain for the chosen alternative will be delineated in order to verify the impacts of the project. This floodplain will not be submitted to FEMA. The impacts will be determined by comparing the updated HEC-RAS model with the effective flows, created in task 2.4, to the same HEC-RAS model with the 100-year flows reduced by the storm sewer system.
- 3.6 **35% Plan Set.** Plan and profile of the chosen design will be submitted to the City for review. The planset will be part of the overall roadway planset. The sheets provided will be:
 - Overall Layout
 - Plan and Profile
 - Detail Sheets
- 3.7 **Address Comments and Submit Final Design.** This task assumes for one round of minor comments from the City. Having meetings throughout the course of the project will help minimize major comments at the final submittal.
- 3.8 **Summary Design Report.** During the finalization of the preliminary design, Ayres will prepare a summary design report which documents all of the decisions that were made, the technical analysis that was completed and generally describes the purpose and results of the project.



ATTACHMENT C1

Ayres Associates - Professional Services Fee Proposal
Evers Blvd. 35% Design
Based on Scope of Services in Exhibit A1 dated 7/2/14



LABOR DETAIL AND SUMMARY OF DIRECT AND SUBCONSULTING COSTS BY TASK

Task	Description	Ken Voigt	John Davis, PTOE	Andy Dana, PE	Gene MacDonald, PE	Darci Hendon, PE	Samantha Campbell, EIT	Alex Cowan	Chris Silewski	1-Man Survey Crew	Clerical	Total Labor Cost	Total Direct Expenses	Total by Task
		\$190	\$160	\$130	\$155	\$110	\$85	\$95	\$75	\$70	\$65			
Task 1	Project Kick-Off and Reconnaissance													
1.1	Kick-Off Meeting	2				2	2					\$ 770	\$ -	\$ 770
1.2	Observation of On-Site Conditions / Notes / Photos/Review Existing Documents					5	9					\$ 1,315	\$ 17	\$ 1,332
1.3	Collection of Utility Information						5			22		\$ 1,965		\$ 1,965
1.4	Project Administration				8						3	\$ 1,435		\$ 1,435
	Subtotal	2			8	7	16			22	3	\$ 5,485	\$ 17	\$ 5,502
Task 2	Analysis													
2.1	Speed Data Collection Intersection Count Set-up/Take Down (3 intersections)						5	1				\$ 520	\$ 389	\$ 909
2.2	Traffic Turning Movement Counts & Data Download (5.5hr/day/intersection) (3 locations)					6	19	1				\$ 2,370	\$ 136	\$ 2,506
2.3	Analyze Crash Data		1				17	2				\$ 1,795		\$ 1,795
2.4	Traffic Analysis and Recommendations		1				12	2				\$ 1,370		\$ 1,370
	Subtotal		2			6	53	6				\$ 6,056	\$ 525	\$ 6,581
Task 3	Corridor Analysis and Design													
3.1	Develop Plan and Profiles					15	40					\$ 5,050		\$ 5,050
	Subtotal					15	40					\$ 5,050	\$ -	\$ 5,050
Task 4	Public Involvement / Committee Meetings													
4.1	Project Steering Committee Meetings (4 total)					4	8					\$ 1,120		\$ 1,120
4.2	Public Meeting #1 (Corridor Walk)				2	6	12		10			\$ 2,740	\$ 100	\$ 2,840
4.3	TAC Advisory Meeting (Assume 1 Total)					2	1					\$ 305		\$ 305
4.4	Public Meeting Follow Up Meetings with MPO (2 Total)					2	4					\$ 560		\$ 560
4.5	Public Meeting #2				2	5	8		5			\$ 1,915	\$ 100	\$ 2,015
4.6	Provide MindMixer Uploads					2	2					\$ 390		\$ 390
	Subtotal				4	21	35		15			\$ 7,030	\$ 200	\$ 7,230
Task 5	Report													
5.1	Draft Report Preparation	5	4	4		15	30				3	\$ 6,505	\$ 350	\$ 6,855
5.2	Graphics for Report and Meetings		1			3	5	2	24			\$ 2,905		\$ 2,905
5.3	Draft Cost Estimate			1		1	4					\$ 580		\$ 580
5.4	Draft Report Review Meeting	1		1		1	2					\$ 600		\$ 600
5.5	Final Report Preparation	3	2	4		10	15				3	\$ 3,980		\$ 3,980
5.6	Final Cost Estimate			1		1	2					\$ 410		\$ 410
5.7	Final Report Review Meeting	1		1		1	2					\$ 410		\$ 410
5.8	Final Report					3	2					\$ 500	\$ 350	\$ 850
	Subtotal	10	7	12		35	62	2	24		6	\$ 15,890	\$ 700	\$ 16,590
	Total	12	9	12	12	84	206	8	39	22	9	\$ 39,512	\$ 1,442	\$ 40,954

Mileage: Office to Intersection of Evers and Bishop is 4.0 miles. Corridor is 1 mile long. Mileage rate is \$0.86/mile.
Traffic Forecasting: Ayres will provide traffic count data to the Cheyenne MPO to use in traffic forecasting.

ATTACHMENT C2

Ayres Associates - Professional Services Fee Proposal
Evers Blvd. Drainage Analysis
Based on Scope of Services dated 7/1/2014

LABOR DETAIL AND SUMMARY OF DIRECT AND SUBCONSULTING COSTS BY TASK

Task	Description	Manager (Gene MacDonald)	Engineer (Jaclyn Michaelson)	Jr. Engineer (Pat Schoenecker)	Survey manager (Darby Schock)	Two-man survey crew	CAD / GIS	Word Processor / Editor / ContractAdmin	Clerical	Total Labor Cost	Direct Costs	Total by Task
		\$165	\$135	\$95	\$125	\$150	\$85	\$75	\$55			
Task 1	Meetings and Data Collection											
1.1	Scoping/ Kick-off meeting	4	4	3						\$ 1,485		\$ 1,485
1.2	Survey data	2	2		4	8				\$ 2,300		\$ 2,300
1.3	Progress Meetings	4	12	6						\$ 2,850		\$ 2,850
1.4	Data Collection		4	8						\$ 1,300		\$ 1,300
1.5	Utility Coordination	4		16		3				\$ 2,630	\$ 2,750	\$ 5,380
										\$ -		\$ -
	Subtotal	14	22	33	4	11				\$ 10,565	\$ 2,750	\$ 13,315
Task 2	Alternative Analysis											
2.1	Basin Delineation		2	8						\$ 1,030		\$ 1,030
2.2	Preliminary Storm Sewer Alignment	2	4	20			16			\$ 4,130		\$ 4,130
2.3	EPA SWMM Model	2	16	24						\$ 4,770		\$ 4,770
2.4	HEC-RAS Modeling	2	12	24						\$ 4,230		\$ 4,230
2.5	Alternative Analyses	8	16	32						\$ 6,520		\$ 6,520
2.6	Cost Estimate	2	2	12						\$ 1,740		\$ 1,740
2.7	Decision Matrix	2	2	4						\$ 980		\$ 980
										\$ -		\$ -
	Subtotal	18	54	124			16			\$ 23,400	\$ -	\$ 23,400
Task 3	35% Design for Inclusion into MPO Plan											
3.1	Plan and Profile	1	4	16			8			\$ 2,905		\$ 2,905
3.2	EPA SWMM Analysis		2	8						\$ 1,030		\$ 1,030
3.3	Inlet Sizing		4	16						\$ 2,060		\$ 2,060
3.4	Cost Estimate	2	2	8						\$ 1,360		\$ 1,360
3.5	Floodplain Delineation	2	4	16						\$ 2,390		\$ 2,390
3.6	35% Plan Set	8	12	16			32			\$ 7,180		\$ 7,180
3.7	Address Comments and Submit Final Design	4	6	24						\$ 3,750		\$ 3,750
3.8	Summary Design Report	4	8	24			8			\$ 4,700		\$ 4,700
										\$ -		\$ -
	Subtotal	21	42	128			48			\$ 25,375	\$ -	\$ 25,375
	Drainage Total	53	118	285	4	11	64			\$ 59,340	\$ 2,750	\$ 62,090
	Roadway Total	\$40,954										
	Project Total	\$103,044										